

but specialties, where the heir was bound, were still made to take precedent of simple contract debts, and specialties where the heir was not bound. A subsequent statute (*g*) has now abolished the distinction between simple contract debts and specialty debts, and directed all debts to be paid *pari passu* in the administration of estates of testators or intestates who may have died on or after the 1st of January, 1870.

20. **Duties consequent on acceptance.** — As soon as a trustee has accepted the office, he must bear in mind that he is [*207] not to sleep upon it, but is required to take an ** active* part in the execution of the trust. The law knows no such person as a *passive* trustee. If, therefore, an unprofessional person be associated in the trust with a professional one, he must not argue, as is often done, that because the solicitor is better acquainted with business and with legal technicalities, the administration of the trust may be safely confided to him, and that the other need not interfere except by joining in what are called formal acts. If he sign a power of attorney for sale of stock, or execute a deed of reconveyance on repayment of a mortgage sum, he is as answerable for the money as if he were himself the solicitor and had the sole management of the transaction.

21. **A trustee on acceptance must inform himself of the state of the trust.** — Again, when a trustee has entered upon the trust, he is bound at once to acquaint himself with the nature and particular circumstances of the property, and to take such steps as may be necessary for the due protection of it (*a*). Thus he is not liable for the defaults of any predecessor in the trust, but if the fund is in danger and not in the state in which it ought to be, the Court will presume him to have made proper inquiries, and will hold him responsible if he does not take such measures as may be called for (*b*).

(*g*) 32 & 33 Vict. c. 46.

[(*a*) A trustee who brings an action for the protection of the trust property under the advice of counsel, is not *absolutely* indemnified by such advice from liability to the costs of the action

as between himself and his *cestuis que trust*, though such advice would go a long way to justify the proceedings, if instituted *bonâ fide*: *Stott v. Milne*, 25 Ch. D. 710.]

(*b*) See *Taylor v. Millington*, 4 Jur.